CHAPTER 14

A G R I C U L T U R E T O D A Y

LAND OWNERSHIP AND PRICES

The total land area of Palestine is about 26,300,000 dunums or about 6,500,000 acres.* The use of the dunum as a convenient standard of measurement suggests the relatively small areas with which Palestinian agriculture operates. The dunum is only 10 meters by 100 meters. The standard American football field, 100 yards long and 53-1/3 yards wide, contains nearly 4.5 dunums.

Palestinian lands have a bewildering variety of legal statuses. Mulk land most nearly approximates our common law fee simple, with complete rights of sale and disposition by will. Miri land is approaching the status of Mulk, but it still is bound by a traditional inheritance system; formerly Miri reverted to the State on continued non-cultivation, but this State right has ceased to be exercised. Musha land is farthest removed from fee simple; it is held subject to communal rights of repartition -- though not commonly equal repartition.

Musha is giving way to Miri because any landowner has had the right for the past 85 years (see page 50 above) to claim his separate share in Musha lands, a share that would thenceforward be free from any general repartition. The sharing out has proceeded slowly, first, because the total claims of the villagers (never having been accurately measured or registered) often amount to more land than there is in the whole village and, second, because the villagers cannot agree about the comparative value of the various kinds of land they own jointly. Under the Mandate, Government has attempted to settle the conflicting claims and to register the resulting land rights in a comprehensive way. It was anticipated, when Land Settlement began, that in a few years all Musha village lands would be reorganized into consolidated, workable farms. That anticipation has been, in great measure, disappointed.

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* 1 dunum = 0.247 acre; 1000 dunums = 1 square kilometer = 0.386 square mile.